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CASE #	CASE NAME	HEARING NAME
CVPS2501236	SANCHEZ VS HAKIM ISAC	MOTION TO BE RELIEVED AS COUNSEL FOR ALFREDO SANCHEZ

Tentative Ruling: No tentative ruling. Hearing will be conducted on Tuesday, July 21, 2026 at 8:30 a.m., Department PS2.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2505408	BONILLA NAVA VS VINTAGE ASSOCIATES, INC.	MOTION TO COMPEL COMPLIANCE WITH DEPOSITION SUBPOENA BY VINTAGE ASSOCIATES, INC.

Tentative Ruling: Granted.

Responding non party Hope & Healing Counseling Services is ordered to produce responsive documents within 15 days of this order becoming final.

Moving party to provide notice pursuant to CCP 1019.5.

This is an employment case. On 7/24/2025, Leticia Bonilla Nava ("Plaintiff") filed a complaint against Vintage Associates, Inc. ("Defendant") asserting the following causes of action: (1) sexual harassment; (2) disability discrimination; (3) failure to accommodate; (4) failure to engage in the interactive process; (5) retaliation; (6) failure to prevent and correct discrimination, harassment, and retaliation; and (7) wrongful constructive termination in violation of public policy.

Defendant now moves the court to compel third-party Hope & Healing Counseling Services ("Hope") to produce documents. Specifically, the documents requested are mental health records that Defendant states go to Plaintiff's claim of mental and emotional injuries, including distress, anxiety and depression, as well as continued ongoing psychological injuries. Defendant states Hope asked for an authorization signed by Plaintiff to release the records, but Plaintiff refused to do so. In response, Hope objected to the production of documents under the psychotherapist-patient privilege.

Hope filed an opposition to the motion, stating they are licensed psychotherapists and thus, without a signed authorization from Plaintiff, must assert the psychotherapist-patient privilege. Hope also requests that any determination of what records are deemed to be relevant be done by the court or the parties, "...as it would be outside the scope of [Hope's] role to make legal determinations as to what records (or portion thereof) may be determined to pertain to Plaintiff's claims...." (Hope's Opposition, p. 6:8-10.) Finally, Hope requests that to the extent the parties also want a deposition, "...the issue of testimony...be determined at the time to avoid the need for future court intervention." (*Id.* at p. 6:16-18.)

Plaintiff did not file any opposition to the motion.

Motion to Compel 3rd Party

Discovery may be obtained from a nonparty by oral deposition, written deposition, or a deposition for production of business records. (CCP § 2020.010.) "[T]he process by which a nonparty is required to provide discovery is a deposition subpoena." (CCP § 2020.010(b).) Personal service of a deposition subpoena obligates any California resident to appear, testify and produce the requested documents, and to appear in any proceedings to enforce the discovery. (CCP §

2020.220(c).) If a non-party refuses to comply with a subpoena, the subpoenaing party may seek an order compelling compliance. (CCP §§ 1987.1, 2025.480(a).) The motion shall be accompanied with a meet and confer declaration. (CCP § 2025.480(b).) As a preliminary matter, Defendant complied with the meet and confer requirement. (Declaration of Madison K. Moreno, ¶¶ 7-8.)

First, either the nonparty witness who has been subpoenaed, or a party to the action, may challenge the deposition subpoena by a motion to quash or modify the subpoena duces tecum. (*Southern Pac. Co. v. Superior Court in and for Los Angeles County* (1940) 15 Cal.2d 206, 209; CCP § 1987.1(a).) A motion to quash a subpoena may be granted on the grounds that the matters sought to be discovered are privileged, protected, or beyond the scope of discovery. (CCP § 2017.010; *Rudnick v. Superior Court* (1974) 11 Cal.3d 924, 929.) Hope made no motion to quash or motion for protective order. Plaintiff does not oppose the motion, nor did Plaintiff file any motion to quash or motion for protective order. There is no valid challenge to the subpoena.

Here, the main issue is the psychotherapist-patient privilege, “which is ‘an aspect of the patient’s constitutional right to privacy’ under article I, section 1 of the California Constitution.” (*Sorenson v. Superior Court* (2013) 219 Cal.App.4th 409, 445.) “The privilege is codified in Evidence Code section 1014, which provides that a patient, ‘whether or not a party,’ generally ‘has a privilege to refuse to disclose, and to prevent another from disclosing, a confidential communication between patient and psychotherapist.’ ‘[F]or policy reasons the psychotherapist-patient privilege is broadly construed in favor of the patient, while exceptions to the privilege are narrowly construed.’ (*Story v. Superior Court* (2003) 109 Cal.App.4th 1007, 1014.).” (*McGovern v. BHC Fremont Hospital, Inc.* (2022) 87 Cal.App.5th 181, 198.)

The psychotherapist-patient privilege is not absolute. The “patient-litigant exception” to the privilege is codified in Evidence Code section 1016, which states that the psychotherapist-patient privilege is waived “as to a communication relevant to an issue concerning the mental or emotional condition of the patient if such issue has been tendered by (a) The patient; [or] (b) Any party claiming through or under the patient.” (Evid. Code § 1016.)

Generally, [e]motional distress alone, without more, is not enough to override the statutory protections. (See *Vinson v. Superior Court* (1987) 43 Cal.3d 833, 840-841 [mere allegation of mental distress does not waive privilege].) (Opposition, p. 3.) However, the *Vinson* court held that “Plaintiff’s present mental and emotional condition is directly relevant to her claim and essential to a fair resolution of her suit; she has waived her right to privacy in this respect by alleging continuing mental ailments.” (*Vinson*, *supra*, 43 Cal.3d at 842.)

Plaintiff placed her mental and emotional condition at issue by stating in responses to Form Interrogatories that she “...experiences ongoing psychological injuries...” and that her emotional distress, “...occurs on a daily basis and has been ongoing since April 2025.” (Declaration of Madison Moreno, Exhibit A, Responses to FROG Nos. 212.2, 212.3, and 212.7.)

There are no other objections or arguments in opposition and as stated above, Plaintiff did not file any motion to quash or motion for protective order to prevent disclosure or limit the scope in any way. Accordingly, the motion is granted. Hope’s request for the court to rule on a potential deposition or “testimony” must be rejected. This issue is not before the court and it would be improper to rule on an issue not properly noticed in Defendant’s moving papers given Plaintiff would not have a chance to respond or object.